

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tomiche Martinez	Team: Squad #12	CCRB Case #: 202310368	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/02/2023 1:35 AM, Thursday, 11/02/2023 2:00 AM	Location of Incident: Bruckner Boulevard and Whitlock Avenue in the Bronx; 41st Precinct stationhouse	18 Mo. SOL 5/2/2025	Precinct: 41		
Date/Time CV Reported Thu, 11/02/2023 2:26 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 11/02/2023 2:26 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Trevor Singh	17598	962107	041 PCT
2. PO Jose Gomez	11756	969093	041 PCT
3. SGT Kevin Weber	00906	948439	041 PCT
4. SGT Tasheba Miranda	02685	933038	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alex Amaro	05601	975962	041 PCT
2. PO Enzo Morello	06012	968649	041 PCT
3. PO Rafael Pimentescoto	01660	974435	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Kevin Weber	Abuse: Sergeant Kevin Weber drew his gun.	A . Substantiated
B . SGT Kevin Weber	Abuse: Sergeant Kevin Weber threatened to detain § 87(2)(b)	B . Substantiated
C . SGT Kevin Weber	Abuse: Sergeant Kevin Weber refused to provide his name to § 87(2)(b)	C . Unfounded
D . SGT Kevin Weber	Abuse: Sergeant Kevin Weber refused to provide his shield number to § 87(2)(b)	D . Unfounded
E . PO Jose Gomez	Abuse: Police Officer Jose Gomez refused to provide his name to § 87(2)(b)	E . Unfounded
F . PO Jose Gomez	Abuse: Police Officer Jose Gomez refused to provide his shield number to § 87(2)(b)	F . Unfounded
G . PO Trevor Singh	Abuse: Police Officer Trevor Singh threatened § 87(2)(b)	G . Unfounded
H . SGT Tasheba Miranda	Abuse: Sergeant Tasheba Miranda did not process § 87(2)(b) complaint regarding (an) officer(s).	H . Miscellaneous - Subject Retired
I . SGT Tasheba Miranda	Abuse: Sergeant Tasheba Miranda did not process § 87(2)(b) complaint regarding (an) officer(s).	I . Miscellaneous - Subject Retired

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on November 2, 2023.

On November 2, 2023, at 1:35 AM, at Bruckner Boulevard and Whitlock Avenue in the Bronx, Sgt. Kevin Weber, who was with PO Trevor Singh, PO Jose Gomez, PO Enzo Morello, and PO Alex Amaro, all of the 41st Precinct, stopped § 87(2)(b) vehicle for a VTL violation, for which § 87(2)(b) received a VTL summons. § 87(2)(b) § 87(2)(b) fiancé, was riding in the front passenger seat. Prior to approaching § 87(2)(b) vehicle, Sgt. Weber drew his firearm (**Allegation A: Abuse of Authority, Substantiated**). During the vehicle stop, § 87(2)(b) exited his vehicle unprompted. Sgt. Weber threatened to detain § 87(2)(b) at a police stationhouse if he did not reenter his vehicle (**Allegation B: Abuse of Authority, Substantiated**). During the vehicle stop, Sgt. Weber allegedly refused to provide his name and shield number to § 87(2)(b) and PO Gomez allegedly refused to provide his name and shield number to § 87(2)(b) (Allegations C through F: Abuse of Authority, Unfounded). PO Singh allegedly made an unspecified threat toward § 87(2)(b) (Allegation G: Abuse of Authority, Unfounded).

Later, at approximately 2:00 AM, at the 41st Precinct stationhouse, Sgt. Tasheba Miranda of the 41st Precinct, refused to process § 87(2)(b) and § 87(2)(b) complaints regarding members of service (**Allegations H and I: Abuse of Authority, Miscellaneous – Subject Retired**).

§ 87(2)(b) received a VTL summons as a result of this incident. He was not arrested. § 87(2)(b) was not summonsed or arrested as a result of this incident.

The investigation obtained body-worn camera (BWC) videos recorded by Sgt. Weber, PO Singh, PO Gomez, PO Morello, and PO Amaro (Board Review 01), summarized in IA #44. The investigation also obtained BWC videos recorded by Sgt. Miranda and PO Rafael Pimentel-Escoto of the 41st Precinct (Board Review 02), summarized in IA #70. The investigation obtained stationhouse surveillance video of the 41st Precinct (Board Review 03), summarized in IA #54.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Kevin Weber drew his gun.

§ 87(2)(b) did not allege that any officer drew a gun, but BWC video shows that Sgt. Weber drew his firearm while approaching § 87(2)(b) vehicle.

In PO Gomez's BWC video (Board Review 04), at 0m09s, PO Gomez exits the front passenger seat of the police vehicle and approaches § 87(2)(b) vehicle. At 0m20s, Sgt. Weber walks into frame and walks toward § 87(2)(b) vehicle. Sgt. Weber is holding a firearm in his right hand. He holds the firearm at waist level, slightly behind his body. PO Gomez walks past Sgt. Weber such that Sgt. Weber is no longer in frame. It is unclear when Sgt. Weber holsters his firearm.

Similarly, in PO Amaro's BWC video (Board Review 05), 0m05s, PO Amaro exits the police vehicle and approaches § 87(2)(b) vehicle with Sgt. Weber and PO Gomez. At 0m24s, Sgt. Weber holds a firearm in his right hand, slightly behind his body. PO Amaro walks past Sgt. Weber and Sgt. Weber is no longer in frame. Again, it is unclear when Sgt. Weber holsters his firearm.

Sgt. Weber provided a statement to the CCRB on January 17, 2024 (Board Review 06). He stated that on November 2, 2023, at approximately 1:30 AM, he was on routine patrol. He was in an unmarked vehicle because there had been an increase in vehicles having their rims and tires stolen.

The stolen rims and tires had been occurring in the general area where § 87(2)(b) vehicle was stopped but Sgt. Weber had no reason to believe the vehicle was involved in these crimes. Officers in another vehicle initiated the vehicle stop. Officers pulled § 87(2)(b) vehicle over because he had been honking unnecessarily at the officers at 1:40 AM. Nothing else brought Sgt. Weber's attention to § 87(2)(b) vehicle. At the time, Sgt. Weber was unaware of any reason for the vehicle stop other than honking. Sgt. Weber drew his firearm while approaching § 87(2)(b) vehicle because many violent crimes occur at night, because § 87(2)(b) windows were tinted, and because there are many "unknowns" during car stops. He also stated that it was after midnight and most violent crimes happen after midnight, and that officers may be attacked through tinted windows. Sgt. Weber cited the case of a PO Timoshenko, who was killed during a vehicle stop years prior. Sgt. Weber believed that the potential for serious physical injury was present for these reasons. Sgt. Weber holstered the firearm once he assessed that there was no apparent danger in the vehicle. Sgt. Weber could not approximate how many seconds passed between him drawing and holstering the firearm. Sgt. Weber determined that there was no danger upon approaching the vehicle and seeing that there were apparently no weapons in the car or anything that would indicate a threat to him.

According to Patrol Guide Procedure 221-02 "Force Guidelines," drawing a firearm prematurely or unnecessarily limits a uniformed member of the service's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present (Board Review 07).

It is undisputed that Sgt. Weber drew his firearm. § 87(2)(g)

it is recommended that
Allegation A be closed as **Substantiated**.

Allegation (B) Abuse of Authority: Sergeant Kevin Weber threatened to detain § 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB on November 9, 2023 (Board Review 08). He stated that after he honked at two slow-moving unmarked vehicles, which he learned were police vehicles, the officers in those vehicles stopped his vehicle. PO Singh and PO Amaro approached § 87(2)(b) vehicle, PO Singh on the driver side and PO Amaro on the passenger side. PO Singh asked for § 87(2)(b) license and registration. § 87(2)(b) complied. PO Singh walked back to his vehicle and PO Amaro walked away from § 87(2)(b) window and stood behind § 87(2)(b) car, conversing with Sgt. Weber and PO Gomez. There was a fifth officer in the second car, but § 87(2)(b) did not interact with him. Approximately six minutes later, § 87(2)(b) turned off his car and exited the vehicle. Sgt. Weber, PO Singh, PO Amaro, and PO Gomez approached § 87(2)(b) and told him to get back in his car. PO Singh said that there was an "active investigation" in progress. § 87(2)(b) asked if he was being arrested. The officers did not answer him. The officers again told him to get back into the car. Sgt. Weber said, "You could get arrested. I'll arrest you right now." § 87(2)(b) asked Sgt. Weber what he could be arrested for. § 87(2)(b) also told Sgt. Weber that his car was off and his passenger was still in the car. Sgt. Weber did not tell § 87(2)(b) why he could be arrested. PO Singh opened § 87(2)(b) door, and PO Singh and PO Amaro physically guided § 87(2)(b) back into the car. § 87(2)(b) told PO Singh and PO Amaro that he could get back into the car himself. § 87(2)(b) got into the car and waited for PO Singh to come back with his license and registration.

In Sgt. Weber's BWC video (Board Review 09), at 3m07s, PO Gomez, PO Amaro, and PO Morello walk toward the driver's side of § 87(2)(b) vehicle. Multiple officers instruct § 87(2)(b) to stay in his vehicle. At 3m24s, officers continue to instruct § 87(2)(b) to get into the car. § 87(2)(b) says, "I'm not under arrest," several times. Another officer says, "I'm not going to ask you again." An officer tells § 87(2)(b) that he has to stay in the car because it is a car stop. At 3m39s, Sgt. Weber says, "Sir, but you are not free to leave. You got to sit in your car." § 87(2)(b) says that he is not leaving and that he turned his car off. At 3m57s, an officer again tells § 87(2)(b) that it is a car stop and that he needs to stay in the car. At 4m09s, Sgt. Weber says, "Sir, get back in the car or you're going to the precinct. Sir, listen: you can either have a seat in the car or you're going to the precinct and getting your ticket from the precinct." At 4m32s, § 87(2)(b) tells the officers that he is just trying to get home, and the officers were driving slowly, "like snails." At 4m43s, Sgt. Weber says, "What you're doing is unnecessary. You're about five seconds from going back to the precinct. You want to go back to the precinct? Open the door for him. Have a seat. Sir, have a seat in your car. Have a seat in your car or you're going into the precinct." The officers continuously instruct him to reenter his vehicle. § 87(2)(b) eventually relents and reenters his vehicle.

Sgt. Weber stated (Board Review 06) that he warned § 87(2)(b) that he could be transported to a police stationhouse because this was a dangerous area to have a conversation, as vehicles were passing at a high rate of speed. Sgt. Weber noted that cars and large trucks were passing to the left of the parties in his BWC video. § 87(2)(b) was supposed to stay in his vehicle during the vehicle stop, and his exiting the vehicle presented a significant safety concern for the officers. He further noted that the officers and § 87(2)(b) could have been struck by one of the passing vehicles. Sgt. Weber explained that he did not mean that he would arrest § 87(2)(b) but noted that § 87(2)(b) could have been arrested for this. Sgt. Weber did not specify for what offense § 87(2)(b) could have been arrested. Sgt. Weber stated that it would be possible for § 87(2)(b) to go back to the police stationhouse and receive a summons there, where it is safer. If § 87(2)(b) had been taken back to the stationhouse, this would not be considered an arrest, because he would only receive the summons and would have been released immediately. Aside from Sgt. Weber's safety concerns, § 87(2)(b) was not doing anything that he believed made it necessary to take him back to the stationhouse.

People v. Desmornes, 82 N.Y.3d 691 (2018) (Board Review 10) states that although CPL 140.10(2) and 1.20(39) technically authorize officers to arrest an individual for even a minor traffic infraction, the New York Court of Appeals has made clear that it maintains a strong preference against custodial arrests in response to minor traffic violations where there is a reasonable summons alternative available.

§ 87(2)(g)

Per Sgt. Weber's statements, as captured in BWC video and per his CCRB interview, he did not intend to arrest § 87(2)(b) § 87(2)(g)

it is recommended that **Allegation B** be closed as **Substantiated**.

Allegation (C) Abuse of Authority: Sergeant Kevin Weber refused to provide his name to § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Kevin Weber refused to provide his shield number to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Jose Gomez refused to provide his name to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Jose Gomez refused to provide his shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Trevor Singh threatened to arrest § 87(2)(b)

§ 87(2)(b) stated (Board Review 08) that he asked for Sgt. Weber's name and shield number. Sgt. Weber provided his name and shield number in a "passive aggressive," perfunctory manner, not giving § 87(2)(b) adequate time to take down Sgt. Weber's information.

§ 87(2)(b) provided a statement to the CCRB on November 8, 2023 (Board Review 11). She stated that after § 87(2)(b) reentered the vehicle, she called out to Sgt. Weber, PO Gomez, and PO Amaro from inside of the vehicle and asked for these three officers' names and shield numbers several times. § 87(2)(g) § 87(2)(b)

§ 87(2)(b) The officers did not immediately provide their names or shield numbers. Toward the end of the interaction, Sgt. Weber, PO Singh, PO Gomez, and PO Amaro approached the passenger side of § 87(2)(b) vehicle, where § 87(2)(b) sat. Sgt. Weber and PO Amaro stated both their names and shield numbers, but PO Gomez never provided his name or shield number.

§ 87(2)(b) also stated that at some point, she exited § 87(2)(b) vehicle to take a video of the officers' vehicles. Sgt. Weber, PO Singh, PO Gomez, and PO Amaro were getting back into their vehicles and preparing to drive away. PO Gomez appeared to say something to § 87(2)(b) from the front passenger window. § 87(2)(b) asked PO Gomez to repeat himself. PO Gomez repeated himself, but § 87(2)(b) could not totally hear what he said due to the traffic noise. § 87(2)(b) asked, "Was that a threat toward me?" PO Gomez said, "Yes. Have a good night."

In PO Gomez's BWC video (Board Review 04), at 1m30s, § 87(2)(b) asks for PO Gomez's "badge ID." PO Gomez responds, but his reply is inaudible. § 87(2)(b) reads PO Gomez's name from his nameplate. At 1m47s, PO Gomez walks to the rear of the vehicle. As he does so, § 87(2)(b) says, "PO Gomez I need your badge ID." PO Gomez says, "We'll be right back miss," and convenes with the other officers at the rear of § 87(2)(b) vehicle. At 12m57s, § 87(2)(b) asks for PO Gomez's "badge ID." PO Gomez recites his shield number, "11756," to § 87(2)(b) twice. § 87(2)(b) does not ask PO Gomez for his name. Additionally, at no point in their interaction does PO Gomez threaten § 87(2)(b)

In Sgt. Weber's BWC video (Board Review 09), at 6m26s, § 87(2)(b) from the front passenger seat, calls out, "We need your name and badge IDs. The five cops that pulled us over. Can we get your name and badge IDs?" Sgt. Weber responds, "No, when we're done. It is not when you want, it is when we're done." At 14m00s, § 87(2)(b) asks for Sgt. Weber's information. Sgt. Weber tells § 87(2)(b) "Sgt. Weber, 906," twice, once from a car length away, and again at § 87(2)(b) window. At no point in the video does § 87(2)(b) directly ask Sgt. Weber for his name or shield number.

BWC video shows that Sgt. Weber ultimately provided his name and shield number to § 87(2)(b). BWC video also shows that § 87(2)(b) never asked PO Gomez for his name but read it from his uniform, and that PO Gomez provided his shield number upon request. BWC video

shows that § 87(2)(b) never asked Sgt. Weber directly for his name or shield number. § 87(2)(g)
§ 87(2)(g)
it is recommended that **Allegations C through G** be closed as **Unfounded**.

Allegation (H) Abuse of Authority: Sergeant Tasheba Miranda did not process § 87(2)(b) complaint regarding (an) officer(s).

Allegation (I) Abuse of Authority: Sergeant Tasheba Miranda did not process § 87(2)(b) complaint regarding (an) officer(s).

§ 87(2)(b) (Board Review 08) stated that following the vehicle stop, he and § 87(2)(b) drove to the 41st Precinct stationhouse. § 87(2)(b) and § 87(2)(b) told PO Pimentel-Escoto, who was stationed just outside of the entrance to the stationhouse, that they wanted to file a complaint against the officers who had stopped them. PO Pimentel-Escoto entered the stationhouse and reappeared with Sgt. Miranda. Sgt. Miranda told § 87(2)(b) and § 87(2)(b) to file their complaints with the CCRB. Sgt. Miranda pulled up the CCRB's contact information on her phone and showed it to § 87(2)(b) and § 87(2)(b) who took it down. Sgt. Miranda told § 87(2)(b) that the NYPD does not take complaints and to contact the CCRB directly.

§ 87(2)(b) statement (Board Review 11) was consistent with § 87(2)(b) statement. § 87(2)(b) and § 87(2)(b) told PO Pimentel-Escoto that they wanted to file a complaint. PO Pimentel-Escoto summoned Sgt. Miranda, who told § 87(2)(b) and § 87(2)(b) to file their complaints with the CCRB.

The stationhouse video received by the investigation (Board Review 03) captures § 87(2)(b) and § 87(2)(b) speaking to Sgt. Miranda in the vestibule of the 41st Precinct stationhouse from 2hr00m11s to 2hr06m29s. That video does not include audio.

The investigation's first request for BWC video of this interaction returned negative results for BWC video from Sgt. Miranda.

Sgt. Miranda was interviewed at the CCRB on January 17, 2024 (Board Review 14). Sgt. Miranda was shown the stationhouse footage that captured her interacting with § 87(2)(b) and § 87(2)(b). Sgt. Miranda stated that, per the BWC video she had recorded and then reviewed prior to the CCRB interview, neither § 87(2)(b) nor § 87(2)(b) requested to file a complaint when she spoke with them in the vestibule of the stationhouse. She stated that she was unable to play her BWC video during the CCRB interview as she did not have her department phone with her.

The investigation received Sgt. Miranda's BWC on February 14, 2024 (Board Review 13). Sgt. Miranda's BWC video captures her speaking with § 87(2)(b) and § 87(2)(b) in the vestibule of the 41st Precinct stationhouse. § 87(2)(b) recounts the encounter he just had with Sgt. Weber and the four other officers who stopped him. At 2m07s, § 87(2)(b) states, "I want to file a complaint." At 3m47s Sgt. Miranda says, "You call that number. That's Civilian Complaint Review Board. They are going to find out who the officers are. You put all that on there and it's going to end up going through the chain, where a civilian is going to ask and request for all of this information. They are going look at the video. They are going to go by that and then if it comes back to us then our supervisors will handle it. I'm not talking about me. I'm talking about the higher ups. They'll deal with it. They will handle that."

Sgt. Miranda's BWC video proved inconsistent with her statement that § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) did not ask to file a complaint. Sgt. Miranda was scheduled to be reinterviewed on March 11, 2024, but did not appear for her interview. The investigation learned from the 41st Precinct roll call office that Sgt. Miranda was retiring. This was confirmed by the Integrity Control Officer of the 41st Precinct, Lt. Jennyliz Sanchez (Board Review 15). A Separation of Service Record (Board Review 22) confirms that Sgt. Miranda is on terminal leave as of the writing of this report.

§ 87(2)(g) it is recommended that **Allegations J and K** be closed as **Miscellaneous – Subject Retired**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 16).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- Sgt. Weber has been a member of service for 17 years and has been a subject in 15 other CCRB complaints and 28 allegations, of which three were substantiated (Board Review 18):
 - Case #202000545 involved substantiated allegations of abuse of authority, frisk, abuse of authority, question, and abuse of authority, vehicle search, against Sgt. Weber. The Board recommended Command Discipline A and the NYPD imposed Command Discipline B.
- Sgt. Miranda has been a member of service for 20 years and has been a subject in one prior CCRB complaint with one allegation, which was not substantiated. § 87(2)(g)
- PO Singh has been a member of service for seven years and has been a subject in one other CCRB complaint with one allegation, which is pending as of the writing of this report. § 87(2)(g)
- PO Gomez has been a member of service for four years and has been a subject in four other CCRB complaints with eight allegations, none of which have been substantiated, and five of which are pending as of the writing of this report. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was unsuitable for mediation.
- As of January 24, 2024, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regard to this incident (Board Review 19).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator: Tomiche Martinez
Signature

Inv. Martinez
Print Title & Name

04/02/2024
Date

Squad Leader:	Samuel Ross	IM Samuel Ross	04/03/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date